

V. CONSTITUTIONAL AND ADMINISTRATIVE-LAW ANALYSIS

a. Introduction to Section V

The preceding three pillars of this brief have established a documented evidentiary record in three domains: the environmental conditions documented to elevate the population-level rate of disability and disability-related conditions in Alberta (Pillar I); the contraction of the educational, early-intervention, and developmental-support systems that the province has assumed the obligation to provide (Pillar II); and the structural restructuring of the income-support architecture for adults with permanent disabilities through the AISH-to-ADAP transition taking effect July 1, 2026 (Pillar III). Section V examines the constitutional and administrative-law questions that arise from those documented findings, considered both individually and in combination.

Two framing observations must precede the analysis.

First, this section identifies justiciable questions; it does not assert that Charter violations have been adjudicated or that judicial findings of unconstitutionality are foregone. The questions raised below are the questions that the documented evidentiary record places before the courts and before the legal community. Whether the Crown can justify the documented arrangements under section 1 of the Charter, whether the evidentiary record in any particular litigation would prove the alleged infringements on the balance of probabilities, and what remedial relief would be appropriate are determinations reserved to the courts on properly developed records. The function of this section is to identify the questions, not to resolve them.

Second, the analysis below proceeds from the documented findings of Pillars I, II, and III. Where this section refers to the "documented record," it refers to the record assembled in those pillars and incorporated by reference. Where this section identifies an evidentiary element that would require further development in the litigation context, it identifies that element explicitly.

The analysis proceeds in seven parts. Section V(b) examines the procedural fairness framework. Section V(c) examines the section 15 equality analysis. Section V(d) examines the section 7 analysis. Section V(e) examines the federal-provincial dimension arising from the Canada Disability Benefit clawback. Section V(f) examines the international human rights framework under the United Nations Convention on the Rights of Persons with Disabilities. Section V(g) examines the section 1 justification framework that the Crown would bear the burden of satisfying in any litigation arising from the matters identified in subsections V(b) through V(f). Section V(h) examines the available remedial framework. Section V(i) enumerates the justiciable questions raised by the analysis, in summary form.

b. Procedural Fairness

b.i. The Foundational Framework

The duty of procedural fairness in Canadian administrative law is articulated in *Baker v. Canada (Minister of Citizenship and Immigration)*, [1999] 2 SCR 817, which establishes that the content of the duty is variable and is determined by reference to a series of contextual factors including: (1) the nature of the decision being made and the process followed in making it; (2) the nature of the statutory scheme; (3) the importance of the decision to the individuals affected; (4) the legitimate expectations of those affected; and (5) the choices of procedure made by the decision-maker. The greater the importance of the decision to the affected person's life, the greater the procedural protection the duty requires.

Income security — the ability of a person to afford shelter, food, prescribed medication, and the necessities of daily life — has been recognized in the Canadian administrative-law jurisprudence as among the most fundamental interests a state administrative decision can affect. Decisions that determine, alter, or terminate income security therefore engage the upper range of the *Baker* framework's procedural-protection requirements.

b.ii. Application to the Documented Findings

The AISH-to-ADAP transition examined in Pillar III(b) constitutes an administrative decision affecting the income security of 79,290 Albertans. The procedural-fairness elements engaged by that decision include:

- *Notice*: Affected individuals are entitled to clear, accessible, timely information about the decision being made, the criteria that govern it, and the consequences attached. As of April 21, 2026 — 71 days before the program's July 1 launch — the ADAP eligibility criteria, the employment-income clawback rates, and the operational specifications of the Medical Review Panel process have not been publicly issued (Pillar III(g)). The notice element of the procedural-fairness duty is, on the documented record, not satisfied.
- *Disclosure of criteria*: The criteria by which the post-transition Medical Review Panel will distinguish AISH-stream eligibility from ADAP-stream eligibility are not publicly available in plain language. The Ministerial Order containing the operational specifications of the employment-income calculations is, on the Minister's own April 3, 2026 correspondence, expected "later this spring." Affected individuals cannot prepare for, or evaluate the legitimacy of, decisions made under criteria they have not seen.
- *Opportunity to respond*: An automatic transition to ADAP, followed by a reapplication process for those wishing to remain on AISH, does not constitute a procedurally adequate opportunity to respond to the transition decision itself. The decision is operative; the response mechanism is reactive. Procedural fairness requires the opportunity to address the decision before it takes effect, not only to challenge it after.
- *Impartial decision-maker*: The Medical Review Panel that succeeds the Citizens Appeal Panel under Bill 12 is appointed by, and operates within the ministerial structure of, the same provincial ministry that administers and funds the AISH program (Pillar III(d)(iv)).

The party with the documented financial interest in reduced program enrolment is the same party that controls the final adjudicative body. The structural independence requirement of procedural fairness is, on the documented record, in question.

- *Reasons*: When an administrative decision significantly affects an individual's fundamental interests, the decision-maker is generally required to provide reasons that allow the individual to understand the basis for the decision and, where appropriate, to challenge it. The Government of Alberta has not, in publicly available documentation, provided reasons — for any individual recipient or as a class — for treating 79,290 prior governmental findings of permanent disability as insufficient to maintain AISH-stream placement under the post-transition framework.

b.iii. Conflict of Interest — Nemo Judex in Sua Causa

The common-law principle *nemo judex in sua causa* — no person should be a judge in their own cause — is among the foundational principles of natural justice. Its application to administrative adjudication is well-established: a decision-maker with a direct financial or personal interest in the outcome of a decision is structurally incapable of providing the impartial adjudication that fundamental fairness requires.

The documented arrangement under Bill 12, examined at Pillar III(d)(iv), places the final eligibility-determination authority for AISH in a Medical Review Panel that operates within the ministry whose budget is documented to project \$77 million in cumulative AISH program reductions over three years. The decisional outcome that reduces program enrolment is the decisional outcome that satisfies the funder's documented fiscal projection. The structural conflict between the adjudicator's institutional position and the decisional outcome favoured by the institution is, on the documented record, present.

Whether the conflict, considered in light of the elimination of the prior independent appeal pathway, satisfies the procedural-fairness threshold in Canadian administrative law is a justiciable question.

c. Section 15 — Equality Rights

c.i. The Analytical Framework

Section 15(1) of the *Canadian Charter of Rights and Freedoms* guarantees that "every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination," including without discrimination based on "mental or physical disability." The contextual two-part test articulated in *Withler v. Canada (Attorney General)*, 2011 SCC 12, asks (1) whether the impugned law creates a distinction on an enumerated or analogous ground, and (2) whether the distinction creates a disadvantage by perpetuating prejudice or stereotyping.

Andrews v. Law Society of British Columbia, [1989] 1 SCR 143, established that section 15 protects substantive — not merely formal — equality. *Eldridge v. British Columbia (Attorney General)*, [1997] 3 SCR 624, established that the duty to accommodate is inherent in section 15 and

that facially neutral laws producing adverse impact on persons with disabilities may constitute discrimination. *Nova Scotia (Workers' Compensation Board) v. Martin*, 2003 SCC 54, established that differential treatment of disability subgroups within a benefits regime constitutes discrimination on the enumerated ground of physical disability.

c.ii. The First Branch — Distinction on an Enumerated Ground

The ADAP framework documented in Pillar III creates distinctions among Albertans on the basis of disability. The relevant distinctions include:

- The distinction between persons retaining AISH-stream placement (those falling within the documented exemption categories — including persons with severe developmental disabilities, persons in palliative care, persons in continuing care, persons over 60) and persons defaulted to ADAP-stream placement (the remainder of the AISH caseload, including persons with severe physical disabilities, complex mental-health conditions, chronic illnesses, and other documented permanent disabilities not falling within the narrow exemption categories).
- The distinction between persons with disabilities and persons without disabilities in the application of employment-participation requirements, employment-income exemption levels, cost-of-living indexing, and appeal-rights protections.
- The distinction between Alberta disability-benefit recipients (subject to dollar-for-dollar Canada Disability Benefit clawback) and the disability-benefit recipients of every other province and territory in Canada (whose CDB is exempt from clawback).

The first branch of the *Withler* test requires only that the distinction be made on an enumerated or analogous ground. Mental and physical disability are expressly enumerated. The first branch is satisfied on the documented record.

c.iii. The Second Branch — Disadvantage Through Perpetuation of Prejudice or Stereotyping

The second branch examines whether the distinction creates a disadvantage by perpetuating prejudice or stereotyping. The documented record raises the following considerations.

Disadvantage: The financial and procedural-rights disadvantage produced by the distinction is documented in Pillar III. The cumulative income reduction documented at Pillar III(b)(iii) is \$621 per month against the existing AISH living allowance, applied to a population whose eligibility was originally determined precisely on the ground that they were unable to support themselves through employment. The removal of the independent appeal pathway documented at Pillar III(d) is a procedural-rights reduction applied exclusively to the disability-benefit population.

Stereotyping: ADAP's structural premise — that recipients possess employment capacity that AISH has not enabled them to express — is, on the documented record, in tension with the population data. AISH eligibility requires a finding of permanent inability to earn a livelihood. The September 2025 caseload data documents that 83.6% of recipients have zero employment income under a program that has never prohibited work. The Statistics Canada 2024 employment rate for

persons with severe disabilities is 26.4% (Pillar III(c)(i)). The structural premise that an employment-supportive program will substantially convert this population into competitive employment participants is, on the documented record, the imposition of an evidence-unsupported assumption — i.e., a stereotype — at the level of policy design. The Supreme Court has repeatedly held that the imposition of stereotypes about marginalized groups in legislation and policy is precisely what section 15 was enacted to prevent.

Disability subgroup distinction: The two-tier structure described in Section V(c)(ii) — under which some categories of disability remain on AISH while others are defaulted to ADAP — is the structural configuration that *Nova Scotia (WCB) v. Martin* identified as discriminatory in the workers' compensation context. The principle articulated in *Martin* — that differential treatment of disability subgroups within a benefits regime constitutes discrimination on the enumerated ground — is directly applicable to the documented ADAP structure.

c.iv. The Justiciable Question

Whether the documented ADAP framework, considered together with the cumulative documented findings of Pillars I, II, and III, constitutes adverse-effects discrimination on the enumerated ground of mental or physical disability within the meaning of section 15 of the Charter is a justiciable question for which a properly developed evidentiary record would be required and on which the Crown would bear the section 1 burden examined at V(g).

d. Section 7 — Life, Liberty, and Security of the Person

d.i. The Framework

Section 7 of the Charter guarantees the right to "life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice." The right to security of the person encompasses both physical and serious psychological integrity (*R v. Morgentaler*, [1988] 1 SCR 30; *Blencoe v. British Columbia (Human Rights Commission)*, 2000 SCC 44). Where state action creates a serious risk to life or security, section 7 is engaged (*Chaoulli v. Quebec (Attorney General)*, 2005 SCC 35).

d.ii. The Engagement of Section 7 Security Interests

The documented record at Pillar III(b)(iii) establishes that the cumulative effect of the AISH-to-ADAP transition, the federal Canada Disability Benefit clawback, and the October 2025 community-housing rent increase reduces the post-rent disposable income of an affected recipient in community housing to \$1,319 per month — the figure available before any expenditure on food, transportation, prescribed medication, clothing, or any other necessity. The pre-transition figure is documented in Pillar III to have already been at or below the poverty line for every major Alberta city (Pillar I and Pillar III financial documentation).

For a recipient whose disability requires ongoing prescribed medication (a substantial portion of the 30.2% of recipients with primary mental-health diagnoses and the 41.5% with primary

physical-disability diagnoses documented at Pillar III(b)(i)), the income reduction directly engages access to medication. For a recipient whose housing cost already exceeds available income, the income reduction directly engages housing security and the foreseeable risk of homelessness. For a recipient whose disability requires specialized food or medical supplies, the income reduction directly engages those expenditures.

The principle established in *Chaoulli v. Quebec* — that state action threatening a person's physical integrity through restriction on access to medical care engages section 7 — applies with structural force where state action threatens physical integrity through restriction on the income required to access shelter, medication, and food. The factual specificity of any individual section 7 claim would require affidavit evidence from individual recipients documenting their specific circumstances, but the pattern documented at the population level establishes the structural engagement of the security interest.

d.iii. The Economic Rights Dimension

The Supreme Court has not definitively resolved whether section 7 creates a freestanding positive right to a minimum income. *Gosselin v. Quebec (Attorney General)*, 2002 SCC 84, declined to find such a right on the record before the Court but expressly left the question open for future cases involving more direct threats to survival. LeBel J in dissent (joined on this point by additional justices) held that government action reducing income to a level incompatible with basic survival needs may establish a section 7 deprivation.

The question Section V raises is not whether section 7 creates a positive obligation on the state to provide a minimum income; it is whether state action that affirmatively reduces existing income, for a population the state has formally found to be unable to earn a livelihood, to a level documented to be incompatible with basic survival needs, engages section 7's negative right against state-imposed deprivation. That is a meaningfully different question from the *Gosselin* majority's holding, and one the *Gosselin* dissent and subsequent jurisprudence (including the recognition in *Chaoulli* that state action threatening physical integrity engages section 7) provide grounding to advance.

d.iv. The Principles of Fundamental Justice

Even where a section 7 deprivation is established, it may be constitutionally permissible if it accords with the principles of fundamental justice. The relevant principles include:

Procedural fairness: The section V(b) analysis is incorporated by reference. The procedural-fairness deficits documented in connection with the ADAP transition implicate the principles of fundamental justice for section 7 purposes.

Non-arbitrariness: A law or policy is arbitrary within the meaning of section 7 jurisprudence where it does not rationally further its stated objective. The Government of Alberta's stated objective for the ADAP transition is to provide supports better calibrated to recipients' "unique needs and abilities" and to enable employment for those who can pursue it. The documented record

at Pillar III(c) — including the 26.4% employment rate for persons with severe disabilities, the 83.6% zero-employment-income figure, the \$2,334 per-person allocation against documented support costs of \$10,000-\$50,000 per person, and the documented contraction of the wraparound-supports infrastructure — raises the question whether the structural means selected (income reduction, employment-participation requirements applied to persons formally found unable to work, removal of independent appeal) rationally further the stated employment-enablement objective.

Non-overbreadth and gross disproportionality: A law that captures conduct or persons beyond what is necessary to achieve its purpose may be overbroad. A law whose effects are grossly disproportionate to its stated objective may be unconstitutional on that ground. The application of employment-participation requirements to a population formally adjudicated as permanently unable to earn a livelihood — without individual reassessment, without new clinical evidence, and with the prior governmental finding treated as carrying no evidentiary weight — raises both overbreadth and gross-disproportionality questions on the documented record.

d.v. The Justiciable Question

Whether the documented AISH-to-ADAP transition, considered in light of the cumulative documented findings of Pillars I, II, and III, constitutes a deprivation of security of the person not in accordance with the principles of fundamental justice within the meaning of section 7 of the Charter is a justiciable question.

e. The Federal-Provincial Dimension — Canada Disability Benefit Clawback

The Canada Disability Benefit, established by the *Canada Disability Benefit Act*, SC 2024, c 17, is a federal anti-poverty supplement to provincial and territorial disability income programs. The federal statute and the policy documentation accompanying its launch articulate the legislative intent that the benefit reach Canadian disabled persons as additional income rather than as an offset to provincial program expenditure.

Alberta's dollar-for-dollar clawback of the CDB against AISH and ADAP benefits, examined at Pillar III(e), produces the documented operational outcome that Alberta CDB recipients receive zero net benefit from the federal payment, while the provincial government captures approximately \$190 million annually that would otherwise reach the affected population. Alberta is, on the documented record, the only province or territory to have adopted this position.

The federal-provincial questions raised by this arrangement include:

Statutory interpretation: Whether the operation of provincial program rules to fully offset a federal benefit payment is consistent with the intent of the federal statute under which the benefit is provided. The federal government has expressed disappointment with the Alberta clawback and has urged reconsideration. A non-binding federal request, however, does not adjudicate the underlying statutory-interpretation question.

Procedural circularity: AISH program rules require recipients to apply for any other income or benefit programs to which they may be entitled. The CDB is such a program. AISH recipients are therefore required by provincial program rules to complete the federal Disability Tax Credit certification process (a process documented as having a 24% completion rate among eligible applicants attempting it without supported assistance) in order to qualify for a federal benefit that the provincial government will then withhold from them dollar-for-dollar. The recipient's documented procedural burden is non-zero. The recipient's documented financial benefit is zero.

Section 36 dimension: Section 36(1) of the *Constitution Act, 1982* commits both federal and provincial governments to "promoting equal opportunities for the well-being of Canadians," "furthering economic development to reduce disparity in opportunities," and "providing essential public services of reasonable quality to all Canadians." While section 36 does not create a directly enforceable individual right, it informs the constitutional context within which provincial program design intersecting with federal anti-poverty policy is to be assessed.

f. The International Human Rights Framework — UNCRPD

Canada ratified the *United Nations Convention on the Rights of Persons with Disabilities* (UNCRPD) on March 11, 2010. The Convention's status in Canadian domestic law is interpretive: in *R v. Hape*, 2007 SCC 26, and subsequent cases, the Supreme Court has recognized the principle that Canadian statutes are presumed to comply with Canada's international obligations and that courts may have regard to international human rights instruments in interpreting domestic law. The Convention's articles relevant to the documented findings of Pillars I, II, and III include the following.

Article 12 — Equal recognition before the law: Article 12 requires that persons with disabilities enjoy legal capacity on an equal basis with others in all aspects of life and that states take appropriate measures to provide access to the support persons with disabilities may require in exercising their legal capacity. The procedural arrangements documented in Pillar III — including the reapplication burden imposed on persons whose qualifying disability may itself impair the capacity to navigate the reapplication process, and the elimination of the independent appeal mechanism — raise Article 12 concerns regarding the support required for persons with disabilities to exercise their legal capacity to maintain the income protection to which they are formally entitled.

Article 13 — Access to justice: Article 13 requires that persons with disabilities have effective access to justice on an equal basis with others, including through procedural and age-appropriate accommodations. The removal of the independent Citizens Appeal Panel for AISH-stream eligibility decisions (Pillar III(d)) and its replacement with a non-independent Medical Review Panel raises Article 13 concerns regarding the availability of effective access to justice for the affected population.

Article 19 — Living independently and being included in the community: Article 19 recognizes the equal right of persons with disabilities to live in the community, with choices equal to others, and

requires effective and appropriate measures to facilitate full enjoyment by persons with disabilities of this right. The cumulative documented effect of the income reduction examined in Pillar III(b) (iii), considered against the housing-cost context in Alberta documented in the same pillar, raises Article 19 concerns regarding the maintenance of the financial conditions necessary for community-based independent living.

Article 28 — Adequate standard of living and social protection: Article 28 recognizes the right of persons with disabilities to an adequate standard of living for themselves and their families, including adequate food, clothing and housing, and to the continuous improvement of living conditions. Article 28(2) further requires states to take appropriate steps to safeguard and promote the realization of this right, including by ensuring access to social protection and poverty reduction programs. The documented benefit reductions, the documented CDB clawback, and the documented removal of legislated cost-of-living indexing engage Article 28 directly.

The UN Special Rapporteur on the Rights of Persons with Disabilities, currently Heba Hagrass, has received formal correspondence from this campaign documenting the matters described above and raising the relevant articles for the Special Rapporteur's consideration.

g. The Section 1 Justification Framework

Where a Charter infringement is established, section 1 of the Charter permits the Crown to demonstrate that the infringement is "demonstrably justified in a free and democratic society." The framework for the analysis is articulated in *R v. Oakes*, [1986] 1 SCR 103. The Crown bears the burden on a balance of probabilities and must establish: (1) that the legislative objective is pressing and substantial; (2) that the means adopted are rationally connected to the objective; (3) that the means impair the Charter right as little as reasonably possible; and (4) that the deleterious effects of the means are proportionate to the salutary effects.

If a justiciable Charter question identified above were to be reached on a properly developed record, the Crown would bear the section 1 burden in respect of any established infringement. The documented evidentiary record identified in this brief raises particular questions for the Crown's section 1 case.

Pressing and substantial objective: The Crown's stated objective for the ADAP transition is the better calibration of disability supports to recipients' "unique needs and abilities" and the enablement of employment for those who can pursue it. Whether that articulation, as operationalized in the documented program design, is the actual objective — or whether the actual objective is the documented fiscal-reduction outcome that the documented program design produces — is a question the Crown's section 1 case would need to address.

Rational connection: The documented record at Pillar III(c) raises the question whether the structural means selected (income reduction, employment-participation requirements, removal of appeal rights, dollar-for-dollar federal-benefit clawback) are rationally connected to the

employment-enablement objective the Crown articulates. The evidence base supporting an affirmative answer is, on the documented public record, not yet provided.

Minimal impairment: The minimal-impairment branch requires that the means selected impair the Charter right no more than reasonably necessary to achieve the objective. The documented record establishes that other Canadian provinces and territories have adopted disability-supports frameworks that pursue stated employment objectives without (a) reducing base benefit, (b) clawing back federal anti-poverty supplements, (c) removing independent appeal rights, or (d) reversing prior governmental findings of disability without new evidence. The minimal-impairment burden on the Crown is, on the comparative record, substantial.

Proportionate effects: The section 1 proportionality analysis weighs the documented salutary effects of the impugned measure against its documented deleterious effects. The documented deleterious effects include the financial, procedural, and material consequences identified throughout this brief. The documented salutary effects, on the publicly available record, have not been quantified or publicly substantiated by the Crown.

h. The Remedial Framework

Section 24(1) of the Charter provides that "anyone whose rights or freedoms, as guaranteed by this Charter, have been infringed or denied may apply to a court of competent jurisdiction to obtain such remedy as the court considers appropriate and just in the circumstances." Section 52(1) of the *Constitution Act, 1982* provides that any law inconsistent with the Constitution is, to the extent of the inconsistency, of no force or effect.

The available remedial range, in the event a Charter infringement were established on a properly developed record, includes:

Declaratory relief: A declaration that the impugned arrangement is inconsistent with the Charter. This remedy has been used in disability-rights litigation, including in *Eldridge v. British Columbia*, where the Court declared that the failure to fund sign-language interpretation in medical settings violated section 15.

Injunctive relief: An order restraining the operation of the impugned arrangement pending reconsideration or amendment. *Doucet-Boudreau v. Nova Scotia (Minister of Education)*, 2003 SCC 62, established that section 24 remedies are flexible and purposive, and that the courts may craft remedies appropriate to the violation, including structural remedies that engage the political branches in producing a Charter-compliant outcome.

Reading-down or reading-in: Where a statute is overbroad in its constitutional impact but capable of severance, the offending portion may be read down or, in appropriate cases, the statute may be read to include the protection necessary for Charter compliance (*Vriend v. Alberta*, [1998] 1 SCR 493).

Suspended declaration of invalidity: Where the immediate striking down of an unconstitutional provision would create administrative difficulty or unintended harm, the courts have granted suspended declarations of invalidity, providing the legislature a defined period to enact a Charter-compliant replacement.

The selection of an appropriate remedy in any litigation arising from the matters identified in this brief would be a matter for the court on the developed record. The remedial framework above is identified for completeness of the analytic structure, not to predict any particular remedial outcome.

i. Summary of Justiciable Questions

The documented findings of Pillars I, II, and III, considered through the constitutional and administrative-law analysis of this Section V, raise the following justiciable questions, identified in summary form:

First, whether the procedural arrangements governing the AISH-to-ADAP transition — including the documented opacity of eligibility criteria, the documented elimination of independent appeal, and the documented structural conflict of interest in the post-transition adjudicative body — satisfy the duty of procedural fairness articulated in *Baker v. Canada* and the broader Canadian administrative-law jurisprudence.

Second, whether the documented ADAP framework constitutes adverse-effects discrimination on the enumerated ground of mental or physical disability within the meaning of section 15 of the Charter, considered against the *Withler* contextual test and the disability-subgroup-distinction principle articulated in *Martin*.

Third, whether the documented cumulative income reduction, considered against the documented Alberta housing and cost-of-living context, constitutes a deprivation of security of the person not in accordance with the principles of fundamental justice within the meaning of section 7 of the Charter.

Fourth, whether the dollar-for-dollar provincial clawback of a federal anti-poverty benefit explicitly designed to reach Canadian disabled persons is consistent with the legislative intent of the *Canada Disability Benefit Act*, SC 2024, c 17, and with the federal-provincial framework articulated in section 36 of the *Constitution Act, 1982*.

Fifth, whether the documented procedural and substantive arrangements engage the obligations Canada has undertaken under Articles 12, 13, 19, and 28 of the United Nations Convention on the Rights of Persons with Disabilities, and whether the relevant Canadian statutes are properly interpreted in light of the presumption of compliance with Canada's international obligations.

Sixth, in the event that any of the foregoing infringements were established on a properly developed record, whether the Crown could discharge the section 1 burden articulated in *R v.*

Oakes — including the rational connection, minimal impairment, and proportionality requirements — in respect of the established infringement.

Seventh, what remedial framework under section 24 of the Charter and section 52 of the *Constitution Act, 1982* would be appropriate to the established infringement and to the remediation of its documented effects on the affected population.

These are the questions the documented record places before the courts and before the constitutional and administrative-law community. The brief identifies them; their resolution is reserved to the legal process that the affected population, advocacy organizations, and the legal practitioners now engaging with this work may, through that process, bring before the courts.

The synthesis of the brief's documented findings and the analysis above is examined in Section VI.